

# 21CV04443 People of the State of California vs 33,100.00 US Currency

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-05

Motion: CMC; Motion for Summary Judgment

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Tentative Ruling: People of the State of California vs 33,100.00 US Currency

Case Number

21CV04443

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/05/2026 - 10:00

Nature of Proceedings

CMC; Motion for Summary Judgment

Tentative Ruling

Petitioner's motion for summary judgment is granted. The Court will sign the proposed order submitted by Petitioner. Petitioner shall submit a proposed formal judgment.

Background:

On November 5, 2021, petitioner People of the State of California (the "People"), filed its petition for forfeiture of Thirty Three Thousand, One Hundred Dollars in U.S. Currency (the "property").

By way of the petition, the People allege that on October 9, 2021, deputies from the Santa Barbara Sheriff's Office lawfully seized the property in connection with the arrest of Claimant Roberto Canseco-Estrada for felony criminal violations of Health & Safety Code sections 11352, 11360(a)(2), and 11351. (Pet., ¶ 4.) The People seek an order declaring that all interests in

the property are forfeited to the State and shall be disposed of as required by Health & Safety Code section 11489.)

On December 10, 2021, Claimant filed a claim opposing forfeiture.

On August 1, 2025, as the result of motions filed by the People, orders were made, including an order that the truth of the matters in the People's first set of requests for admissions propounded on Claimant are conclusively established against Claimant for all purposes.

On February 13, 2026, the People filed the present motion for summary judgment. Claimant has not filed opposition or any other response to the motion.

Analysis:

Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that . . . there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.)

Plaintiff's Burden

"[S]ummary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action. In this particular, it now accords with federal law. All that the plaintiff need do is to 'prove[ ] each element of the cause of action.' (Code Civ. Proc., § 437c, subd. (o)(1).)" (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 853.)

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(1).)

Separate Statement of Undisputed Material Facts

"Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement " 'setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.' " California Rules of Court, rule 3.1350(d)(2)4 states: " 'The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.' " Under the Rules of Court, " ' "Material facts" " are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.' " (Rule 3.1350(a)(2).)" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865,

874-875.)

"Except as provided in Code of Civil Procedure section 437c(r) and rule 3.1351, the opposition to a motion [for summary judgment] must consist of the following separate documents, titled as shown:

"(1) [Opposing party's] memorandum in opposition to [moving party's] motion for summary judgment or summary adjudication or both;

"(2) [Opposing party's] separate statement in opposition to [moving party's] motion for summary judgment or summary adjudication or both;

"(3) [Opposing party's] evidence in opposition to [moving party's] motion for summary judgment or summary adjudication or both (if appropriate); and

"(4) [Opposing party's] request for judicial notice in opposition to [moving party's] motion for summary judgment or summary adjudication or both (if appropriate)." (Cal. Rules of Court, rule 3.1350(e).)

"The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c, subd. (b)(3).)

"Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court." (Bacoka v. Best Buy Stores, L.P. (2021) 71 Cal.App.5th 126, 131, fn. 1.) "Without at least a separate statement and evidence in the form of supporting affidavits or declarations, it is impossible to demonstrate the disputed facts. (Lyons v. Security Pacific Nat. Bank (1995) 40 Cal.App.4th 1001, 1006-1007.)

"The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. 'Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for . . . summary judgment to determine quickly and efficiently whether material facts are disputed.' [Citation.]" (Whitehead v. Habig (2008) 163 Cal.App.4th 896, 902.)

As noted above, Claimant did not file opposition or any other document in response to the motion for summary judgment. None of the State's facts are disputed. Those facts are:

"On October 9, 2021, Claimant had in his possession at the time he was stopped by deputies from the Santa Barbara Sheriff's Department ('SBSO'), a loaded .40 caliber handgun, multiple empty baggies, a scale with marijuana and methamphetamine residue on it, a bag of rubber bands, a 5-gram bindle of methamphetamine, 11.8 ounces of marijuana, 5.59 grams of fentanyl, 6 grams of an unknown powdery substance."

"Claimant had in his possession, at the time he was stopped, THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY."

"Claimant possessed the methamphetamine and fentanyl for the purpose of selling it."

"The THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY in Claimant's possession on October 9, 2021 was either proceeds of or money intended to be used to facilitate the sale of controlled substances."

"Claimant is the sole owner of Defendant THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY."

"No person other than Claimant, ROBERTO CANSECO-ESTRADA, had any possessory, ownership, or legal interest in Defendant THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY as of October 9, 2021."

"Defendant THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY represented proceeds traceable to an exchange for controlled substances which took place during the five (5) years preceding, and including, October 9, 2021."

"Defendant THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY was used to facilitate an exchange for controlled substances which took place within five (5) years of October 9, 2021."

"Defendant THIRTY-THREE THOUSAND, ONE HUNDRED DOLLARS (\$33,100.00) U.S. CURRENCY was intended to be used to facilitate an offense involving sale or possession for sale of controlled substances."

"Claimant is the only person who filed a Claim Opposing Forfeiture in this action."

The facts are all supported by admissible evidence, including the deemed admissions.

The forfeiture sought in this case is pursuant to Health & Safety Code section 11470, subdivision (f) which identifies as subject to forfeiture:

"All moneys, negotiable instruments, securities, or other things of value furnished or intended to be furnished by any person in exchange for a controlled substance, all proceeds traceable to such an exchange, and all moneys, negotiable instruments, or securities used or intended to be used to facilitate any violation of Section 11351, 11351.5, 11352, 11355, 11359, 11360, 11378, 11378.5, 11379, 11379.5, 11379.6, 11380, 11382, or 11383 of this code, or Section 182 of the Penal Code, or a felony violation of Section 11366.8 of this code, insofar as the offense involves manufacture, sale, possession for sale, offer for sale, or offer to manufacture, or conspiracy to commit at least one of those offenses, if the exchange, violation, or other conduct which is the basis for the forfeiture occurred within five years of the seizure of the property, or the filing of a petition under this chapter, or the issuance of an order of forfeiture of the property, whichever comes first."

The facts establish that the property is subject to forfeiture as a matter of law. As such, the motion for summary judgment will be granted and judgment shall enter in favor of the People.

Judges

Judge Donna D. Geck

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